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OF THE COLONY AND PROTECTORATE OF KENYA

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GOVERNMENT NOTICE No 1209

The Governor in Council has approved of the introduction of the following Bill into Legislative Council

A W PURVIS,
Clerk of the Legislative Council

**A BILL ENTITLED
AN ORDINANCE TO AMEND THE WORKMEN'S
COMPENSATION ORDINANCE**

ENACTED by the Governor of the Colony of Kenya with the advice and consent of the Legislative Council thereof, as follows —

- | | | |
|----|---|---|
| 1 | <p>1. This Ordinance may be cited as the Workmen's Compensation (Amendment) Ordinance and shall come into operation on such date as the Governor may, by notice in the Gazette, appoint</p> | <p>Short title and commencement</p> |
| 5 | <p>2. Section 2 of the Workmen's Compensation Ordinance, hereinafter referred to as the principal Ordinance, is amended—</p> | <p>Amendment of section 2 of the principal Ordinance Cap 119</p> |
| 10 | <p>(a) by substituting the words "sixteen thousand eight hundred shillings" for the words "ten thousand shillings" which appear in paragraph (a) of the proviso to sub-section (1) thereof,</p> | |
| 15 | <p>(b) by substituting for paragraph (e) of the proviso to sub-section (1) thereof a new paragraph as follows—
 "(e) a member of the employer's family dwelling in the employer's house or the curtilage thereof, or",
 and</p> | |
| 20 | <p>(c) by substituting for the expression "Except for the purposes of section 16 any", which appears in sub-section (3) thereof, the word "Any"</p> | |
| 25 | <p>3. Sub-section (1) of section 3 of the principal Ordinance is amended—</p> | <p>Amendment of section 3 (1) of the principal Ordinance</p> |
| 30 | <p>(a) by substituting for the words "artificial limbs" which appear in the definition of "medical aid" therein the words "any artificial appliances or apparatus", and</p> | |
| 35 | <p>(b) by substituting for the words "his earning capacity in every employment" which appear in the definition of "partial incapacity" therein, the words "his earning capacity in any employment"</p> | |
| 40 | <p>4. There shall be substituted for section 4 of the principal Ordinance a new section, as follows—</p> | <p>Repeal and replacement of section 4 of the principal Ordinance</p> |
| 45 | <p>4 This Ordinance shall apply to workmen employed by or under the Crown in the same way and to the same extent as if the employer were a private person, except in the case of—</p> | |
| 50 | <p>(a) members of Her Majesty's Naval, Military or Air Forces, and</p> | |
| 55 | <p>(b) persons in the civil employment of Her Majesty, otherwise than in Her Government of the Colony or of the other East African territories or of the High Commission, who have been engaged in a place outside the East African territories.</p> | |

"Application to workmen employed under the Crown"

Provided that this Ordinance shall not apply in the case of a workman in, or selected for appointment to, the service of the Government of the Colony or the service of the High Commission before the date upon which this Ordinance comes into operation where, in consequence of injury received by any such workmen in the discharge of his duties, a pension or gratuity which would not be payable if such injury were received otherwise, is paid to him or, in the case of his death, to any of his dependants as defined in this Ordinance, under any Ordinance or regulation providing for the grant of such pension or gratuity ”

Amendment of section 5 of the principal Ordinance

5. Section 5 of the principal Ordinance is amended—

(a) by substituting for paragraph (a) in the proviso to sub-section (1) thereof a new paragraph, as follows—

“(a) the employer shall not be liable under this Ordinance in respect of any injury which does not incapacitate the workman for a period of at least three consecutive days from earning full wages at the work at which he was employed, and”,

and

(b) by inserting immediately after the word “represented”, which appears in sub-section (3) thereof, the words “in writing”

Amendment of section 6 of the principal Ordinance

6. Section 6 of the principal Ordinance is amended—

(a) by substituting for the words “fourteen thousand shillings”, which appear in paragraph (a) therein, the words “twenty-four thousand shillings”,

(b) by substituting for the expression “section 7, 8 or 9”, which appears in paragraph (a) therein, the expression “section 7 or 8”,

(c) by deleting from paragraph (c) therein the words “and the reasonable expenses of medical attendance on the deceased workman”, and the words “in all”, which appear therein

Repeal and replacement of section 7 of the principal Ordinance

7. There shall be substituted for section 7 of the principal Ordinance a new section, as follows—

“Compensation in the case of permanent total incapacity 7 (1) Where permanent total incapacity results from the injury, the amount of compensation shall be a sum equal to forty-eight months’ earnings

Provided that in no case shall the amount of compensation in respect of permanent total incapacity be greater than thirty-four thousand shillings nor less than two thousand shillings

(2) Notwithstanding the provisions of sub-section (1) of this section, where an injury results in permanent total incapacity of such a nature that the injured workman must have the constant help of another person, additional compensation shall be paid amounting to one quarter of the amount which is otherwise payable under this section ”

Amendment of section 8 (1) of the principal Ordinance

8. Sub-section (1) of section 8 of the principal Ordinance is amended—

(a) by substituting for the words “the compensation which would have been payable in the case of permanent total incapacity”, where those words appear in paragraphs (a) and (b) therein, the words “forty-eight months’ earnings”, and

(b) by substituting a colon for the full stop which appears at the end of paragraph (b) therein, and by adding to the said sub-section a new proviso, as follows—

5 “Provided that in no case shall the amount
of compensation in respect of permanent partial in-
capacity be greater than thirty-four thousand shil-
lings nor less than such percentage of two thousand
shillings as represents the loss of earning capacity
10 arrived at in accordance with paragraph (a) or
paragraph (b) of this sub-section ”

9. Section 9 of the principal Ordinance is amended—
(a) by substituting for the proviso to sub-section (1) there-
of a new proviso, as follows—

Amendment of
section 9 of
the principal
Ordinance

“Provided that—

15 (a) no periodical payment under the provisions
of this section shall be at a higher rate
than five hundred and forty shillings a
month,

20 (b) neither the aggregate of the periodical pay-
ments nor the lump sum payable under
the provisions of this sub-section shall
exceed the lump sum which would be pay-
able in respect of the same degree of in-
capacity under the provisions of sub-
25 section (1) of section 7 or 8 of this Ordin-
ance (as the case may be) if the incapacity
were permanent,

30 (c) the period covered by hospitalization or
absence from duty certified necessary by a
medical practitioner shall be regarded as
a period of temporary total incapacity
irrespective of the outcome of the injury
and any period subsequent thereto but
preceding final assessment of disability
35 shall be regarded as a period of temporary
partial incapacity, both periods being
continuous with each other, variations in
payments notwithstanding, and the
maximum duration of periodical payments
under this section shall not exceed ninety-
six months,

45 (d) in the event of death or permanent in-
capacity following after temporary in-
capacity, no deduction shall be made
from the lump sum payable under section
6, 7 or 8 of this Ordinance by reason of
periodical payments or a lump sum pay-
ment having been made under this
section ”,

50 and

(b) by substituting for sub-section (2) thereof a new sub-
section, as follows—

55 “(2) (a) In fixing the lump sum or periodical
payments payable under sub-section (1) of this sec-
tion a deduction shall be made of the value of any
payment, allowance or benefit, including the value
of any food, fuel or quarters, which the workman
may receive from the employer during the period
of incapacity

60 Provided that the amount payable after such
deduction shall not, if a periodical payment, be
less than a monthly payment of half the difference
between the basic wage which the workman was

earning at the time of the accident and the basic wage he is earning or is capable of earning in some suitable employment or business after the accident, or shall not, if a lump sum, be less than a sum calculated accordingly having regard to the probable 5 duration and probable changes in the degree of the incapacity

(b) For the purposes of this sub-section 'basic wage' means the workman's monthly earnings less the value of any food, fuel or quarters received by 10 the workman from the employer or cash received in lieu thereof "

Repeal and replacement of sub-section (1) of section 10 of the principal Ordinance

10. There shall be substituted for sub-section (1) of section 10 of the principal Ordinance a new sub-section, as follows— 15

"(1) For the purposes of this Ordinance the monthly earnings of a workman shall be computed in such manner as is best calculated to give the rate per month at which the workman was being remunerated at the date of the accident 20

Provided that—

(a) where by reason of the shortness of the time during which the workman has been in the employment of his employer or the casual nature of the employment, or the terms of his employ- 25 ment, it is impracticable to compute the rate of remuneration in the manner aforementioned, regard may be had to the average monthly amount which, during the twelve months previous to the accident, was being 30 earned by a person of similar earning capacity in the same grade employed at the same work by the same employer, or, if there is no person so employed, by a person of similar earning capacity in the same grade employed in the 35 same class of employment and in the same district, and

(b) for the purposes of assessing compensation payable in the case of permanent incapacity—

(i) where the workman was, at the date of 40 the accident, under the apparent age of eighteen years his earnings shall be deemed to be such amount as, had he not met with the accident, he would probably have received upon attaining the age of 45 eighteen years, or at the end of a period of five years after the accident, whichever calculation is more favourable to the workman, and

(ii) where the workman was, at the date of the 50 accident, employed under a contract of apprenticeship, improvership or learnership, his earnings shall be deemed to be such amount as, had he not met with the accident, he would probably have received 55 upon the completion of his apprenticeship, improvership or learnership "

Amendment of section 13 of the principal Ordinance

11. Section 13 of the principal Ordinance is amended—

(a) by substituting for the word "application" which appears therein, the word "claim", and

(b) by substituting for paragraph (b) in the proviso there-
to a new paragraph, as follows—

5 “(b) the failure to make a claim for compensation
within the period above specified shall not be
a bar to the maintenance of such proceedings—

(i) in the case of a workman whose earnings
do not exceed such amount as may be
prescribed, or

10 (ii) in the case of any other workman, if it is
found that the failure was occasioned by
mistake or other reasonable cause,

15 so, however, that no proceedings for the
recovery of compensation shall be maintainable
unless the claim for compensation is made
within a period of three years from the date of
the accident ”

12. Section 14 of the principal Ordinance is amended
by adding thereto, immediately after sub-section (4) thereof,
a new sub-section, as follows—

Addition of
new
sub-section (5)
to section 14
of the principal
Ordinance
Cap 27

20 “(5) The provisions of section 216 of the Criminal
Procedure Code shall not apply in respect of any offence
against this section ”

13. Section 15 of the principal Ordinance is amended—

Amendment of
section 15 of
the principal
Ordinance

25 (a) by substituting for the expression “, either by a
medical practitioner named by the employer or by a
medical practitioner named by the workman with
the employer’s approval, provided that such
approval shall not be unreasonably withheld” which
appears in sub-section (1) thereof, the words “by a
30 medical practitioner named by the employer”,

(b) by substituting for sub-sections (2) and (5) thereof two
new sub-sections, as follows—

35 “(2) The workman shall, when required, attend
upon the medical practitioner at the time and place
notified to the workman by the employer or the
medical practitioner, provided such time and place
are reasonable ”

40 “(5) A workman shall be entitled to have his
own medical practitioner present at such examina-
tion at his own expense ”,

(c) by substituting for the words “total temporary in-
capacity”, which appear in sub-section (6) thereof,
the words “temporary total incapacity”, and

45 (d) by substituting for the words “the employer may
require” which appear in sub-section (6) thereof the
words “the medical practitioner may advise”

14. Section 19 of the principal Ordinance is amended
by substituting for paragraph (b) therein a new paragraph, as
follows—

Amendment of
section 19 of
the principal
Ordinance

50 “(b) to diminish periodical payments except that where
the earnings of a workman in receipt of periodical
payments, together with such payments, exceed the
amount of his earnings at the date of the accident,
the employer may diminish the payments to such
workman by an amount equal to such excess ”

Repeal and replacement of section 26 of the principal Ordinance

15. There shall be substituted for section 26 of the principal Ordinance a new section, as follows—

‘Governor in Council of Ministers may by Order require employers to insure’ 26 (1) The Governor in Council of Ministers may, by order published in the Gazette, require any employer or class of employers to insure and keep 5 himself or themselves insured, with such insurers as may be approved by the Minister, in respect of any liability which he or they may incur under the provisions of this Ordinance to any workmen employed by him or them 10

(2) Where the Governor in Council of Ministers has made any order under the provisions of sub-section (1) of this section he may exempt any employer to whom such order applies from the provisions thereof who provides and maintains in 15 force a security which complies with the requirements of sub-section (3) of this section, and any exemption so granted shall continue in force only so long as such security continues in force

(3) For the purposes of sub-section (2) of this 20 section a security shall consist of an undertaking by a surety approved by the Minister to make good, subject to any conditions specified therein and up to an amount approved by the Minister, any failure by the employer to discharge any liability which 25 he may incur under the provisions of this Ordinance to any workmen employed by him

(4) Any employer who acts in contravention of any order made under the provisions of sub-section (1) of this section shall be liable on con- 30 viction therefor to a fine not exceeding one thousand shillings or to imprisonment for a term not exceeding three months, or to both such fine and imprisonment, and, if the contravention in respect of which he was so convicted is continued after the 35 conviction he shall be guilty of a further offence and liable in respect thereof to a fine not exceeding one hundred shillings for each day on, which the contravention was so continued ”

Amendment of section 27 of the principal Ordinance

16. There shall be substituted for sub-section (4) of 40 section 27 of the principal Ordinance a new sub-section, as follows—

“(4) Where the bankrupt or company in liquidation has entered into such a contract with insurers as is referred to in sub-section (1) of this section, the pro- 45 visions of sub-section (3) of this section shall not apply in respect of the liability of the employer to the workman or that part thereof which is met by the insurers ”

Amendment of section 28 (4) of the principal Ordinance

17. There shall be substituted for sub-section (4) of section 28 of the principal Ordinance a new sub-section, as 50 follows—

“(4) In this section unless the context otherwise requires—

‘ship’, ‘vessel’, ‘master’, ‘seaman’ and ‘port’ shall have the same meaning as in the Merchant Shipping Act 55 1894,

‘manager’ in relation to a ship means the ship’s husband or other person to whom the management of the ship is entrusted by or on behalf of the owner,

‘sea service’ includes service on Lake Victoria ”

57 and 58 Vict Cap 60

18. Sub-section (1) of section 29 of the principal Ordinance is amended—

Amendment of section 29 (1) of the principal Ordinance

(a) by substituting for the expression “shall, in the case of conflict or inconsistency, prevail”, which appears therein, the expression “shall apply and, in the case of conflict or inconsistency, shall prevail”,

(b) by deleting the word “and” where it appears immediately after the semi-colon at the end of paragraph (ii) therein,

(c) by substituting for the full stop appearing at the end of paragraph (iii) therein, a semi-colon immediately followed by the word “and”, and

(d) by adding after paragraph (iii) therein a new paragraph, as follows—

“(iv) in the case of the death of the workman any agreement made in pursuance of sub-section (1) of section 16 of this Ordinance shall be between the employer and any dependant or dependants deemed by an officer to be dependent upon such workman, and where there is more than one dependant the officer shall determine the degree of dependency”

19. Section 30 of the principal Ordinance is amended by substituting a full stop for the colon, which appears after the words “the provisions of this Ordinance”, and by deleting the proviso thereto

Amendment of section 30 of the principal Ordinance

20. There shall be substituted for sub-section (1) of section 32 of the principal Ordinance a new sub-section, as follows—

Amendment of section 32 of the principal Ordinance

“(1) The employer shall defray the reasonable expenses incurred by a workman within the Colony, or, with the approval of the Director of Medical Services, outside the Colony, as the result of an accident which would entitle the workman to compensation under the provisions of this Ordinance—

(a) in respect of medical, surgical and hospital treatment, skilled nursing services and the supply of medicines to an amount not exceeding four thousand shillings in all, and

(b) in respect of the supply, maintenance, repairs and renewal of any artificial appliances or apparatus to an amount not exceeding two thousand shillings in all, and

(c) in respect of reasonable transport charges, not exceeding in all the sum of one thousand shillings, incurred in transfer of a workman to and from a place where the necessary treatment is available, so, however, that such transfer shall be certified to be necessary by the medical practitioner in charge of the case”

21. Section 35 of the principal Ordinance is amended by substituting for the word “magistrate”, which appears in sub-section (2) thereof, the word “court”

Amendment of section 35 of the principal Ordinance

22. Section 37 of the principal Ordinance is amended—

Amendment of section 37 of the principal Ordinance

(a) by inserting immediately after the word “injury” which appears in sub-section (2) thereof, the words “resulting from an accident”,

(b) by substituting for sub-section (3) thereof a new sub-section, as follows—

“(3) Compensation under this Part of this Ordinance shall be calculated with reference to the earnings of the workman under the employer from 5 whom the compensation is recoverable and the monthly earnings of the workman shall be computed in such manner as is best calculated to give the rate per month at which the workman was being remunerated at the date of the grant of the certifi- 10 cate referred to in section 35 of this Ordinance

Provided that—

(a) if the workman was not then so employed, the earnings shall be computed in such manner as is best calculated to give the 15 rate per month at which the workman was being remunerated when he was last employed by the employer from whom compensation is recoverable,

(b) where by reason of the shortness of the time 20 during which the workman has been in the employment of such employer or the casual nature of his employment, or the terms of his employment, it is impracticable to compute the rate of remuneration in 25 the manner aforementioned, regard may be had to the average monthly amount which, during the last twelve months of his employment with such employer, was being earned by a person of similar earning 30 capacity in the same grade employed at the same work by the same employer, or, if there is no person so employed, by a person of similar earning capacity in the same grade employed in the same class of 35 employment and in the same district, and

(c) for the purpose of assessing the compensation payable in cases of permanent incapacity—

(i) where the workman was, at the date of 40 the grant of the certificate, under the apparent age of 18 years, his earnings shall be deemed to be such amount as, had he not contracted the disease, he would probably have received 45 upon attaining the age of 18 years or at the end of a period of five years after the date of the grant of the certificate, whichever calculation is more favourable to the workman, and 50

(ii) where the workman was, at the date of the grant of the certificate, employed under a contract of apprenticeship, improvership or learnership, his earnings shall be deemed to be such 55 amount as, had he not contracted the disease, he would probably have received upon the completion of his apprenticeship, improvership or learnership ”

23. Section 42 of the principal Ordinance is amended by substituting for the words “one hundred shillings for every day during which the default continues”, which appear in sub-section (2) thereof, the words “five hundred shillings, and, if the contravention in respect of which he was so convicted is continued after the conviction, he shall be guilty of a further offence and liable in respect thereof to a fine not exceeding one hundred shillings for each day on which the contravention was so continued”

Amendment of section 42 of the principal Ordinance

24. The First Schedule to the principal Ordinance is amended by inserting immediately after the word “wife”, wherever that word appears therein, the expression “husband”

Amendment of First Schedule to the principal Ordinance

25. There shall be substituted for the Third Schedule to the principal Ordinance the following Schedule—

Repeal and replacement of Third Schedule to the principal Ordinance

“THIRD SCHEDULE
(Section 3)

OCCUPATIONAL DISEASES

<i>Description of Disease</i>	<i>Nature of Occupation</i>
	Any occupation involving—
Anthrax	Work in connexion with animals or the handling of animal carcasses or parts of such carcasses or of wool, hair, bristles, hides, skins, hoofs or horns
Chrome ulceration or its sequelæ	The use or handling of chromic acid, chromate or bichromate of ammonium, potassium, sodium or zinc, or any preparation or solution containing any of these substances
Compressed air illness or its sequelæ	Subjection to compressed air
Inflammation or ulceration of the skin produced by dust, liquid or vapour (excluding chrome ulceration or its sequelæ)	Exposure to dust, liquid or vapour
Pathological manifestations due to— (a) radium or other radio-active substances, (b) X-rays	Exposure to the action of radium, radio-active substances or X-rays
Primary epitheliomatous cancer or ulceration of the skin	The use or handling of, or exposure to, tar, pitch, bitumen, mineral oil (including paraffin), or any compound product or residue of any of these substances
Subcutaneous cellulitis of the hand (Beat hand)	Manual labour causing severe or prolonged friction or pressure on the hand
Subcutaneous or acute bursitis arising at or about the knee (Beat knee)	Manual labour causing severe or prolonged friction or pressure at or about the knee
Telegraphist's cramp	The use of morse-key telegraphic instruments for prolonged periods
Poisoning by— Arsenic, or the sequelæ thereof	The use or handling of, or exposure to the fumes, dust or vapour of, arsenic or a compound of arsenic or a substance containing arsenic
Benzene or any of its homologues and the sequelæ thereof or a nitro- or amino-derivative of benzene or of a homologue of benzene, and the sequelæ thereof	The use or handling of, or exposure to the fumes of, or vapour containing, benzene or any of its homologues or a nitro- or amino-derivative of benzene or of a homologue of benzene

THIRD SCHEDULE—(Contd)

<i>Description of Disease</i>	<i>Nature of Occupation</i>
Cyanide or the sequelæ thereof (including cyanide rash)	The use or handling of, or exposure to the fumes of, or dust or vapour containing, any cyanide or a substance containing any cyanide
Dinitrophenols or their salts, dinitro-substituted phenols or their salts	The use or handling of, or exposure to the fumes of, or vapour containing, any dinitrophenol or its salts or any dinitro-substituted phenol or its salts
Halogen derivatives of hydrocarbons of the aliphatic series	The use or handling of, or exposure to the fumes of, or vapour containing, any halogen derivative of any hydrocarbon of the aliphatic series
Lead or the sequelæ thereof	The use or handling of, or exposure to the fumes, dust or vapour of lead or a compound of lead or a substance containing lead
Organo - phosphorus compounds	The use or handling of, or exposure to the fumes of, or vapour containing, any of the organo-phosphorus compounds

MEMORANDUM OF OBJECTS AND REASONS

During the period of nearly six years for which the Workmen's Compensation Ordinance has been in force certain deficiencies in principle and inconsistencies in language have become apparent. A number of amendments were proposed by an interterritorial standing committee which was set up to examine the working of this Ordinance and of virtually identical Ordinances in the other territories of East Africa, and these proposed amendments were accepted by the three East African Labour Commissioners and by the Labour Advisory Board in Kenya. This Bill amends the Workmen's Compensation Ordinance in accordance with those recommendations, it is also considered most desirable to achieve uniformity in the law governing Workmen's Compensation in Kenya, Uganda and Tanganyika in view of the fact that many employers and insurance companies employ labour and transact business in all three territories, and the Tanganyika and Uganda Ordinances are being similarly amended.

The Ordinance at present does not apply to any person employed otherwise than by way of manual labour whose earnings exceed Sh 10,000 per annum. This maximum is considered too low in present conditions and *clause 2* accordingly widens the application of the Ordinance by amending the definition of "workman" so as to cover persons employed otherwise than by way of manual labour whose yearly earnings do not exceed Sh 16,800. *Clause 2* further amends section 2 (but without changing the definition of "workman") to make it clear that the exclusion (e) refers to a member of the employer's family dwelling in his, the employer's house or curtilage thereof.

Clause 2 also amends section 2 in order to remove the existing obligation which requires all compensation cases arising out of the death of a workman to be referred to the Courts. This clause enables an employer to reach agreement with the dependants or legal representatives in such a case as to the amount of compensation in the same way as he can in the case of an injured workman. Such agreement, however, will be purely voluntary and the matter may still be referred to a Court by either party, and in any case the position of illiterate persons is safeguarded in that any agreement requires the approval of the Labour Commissioner.

Clause 3 (a) amends the definition of "medical aid" in section 3 so as to render employers liable to supply and maintain artificial appliances which are not artificial limbs, e.g. artificial eyes and dentures. Hitherto, employers have been liable to supply and maintain artificial limbs only.

Clause 3 (b) amends the definition of "partial incapacity" with respect to permanent partial incapacity. In the case of the injuries set forth in the Second Schedule to the Ordinance, the eligibility for compensation is indisputable, by reason of the proviso to the definition, even though there may be no immediate loss of earnings. If, however, the injury is not one listed in that Schedule, compensation may not be payable should there be any one employment in which the workman's earning capacity is not reduced. Compensation has in the past been paid in respect of non-scheduled injuries on the basis that the conditions of a workman's employment at the time of settling the compensation do not necessarily reflect the permanent effect of the injury on the workman's earning capacity. This clause removes the existing anomaly, but will not involve any change in the policy or practice of administering the law.

Clause 4 replaces section 4 so as to include in the definition of "workman" all locally engaged civilian employees in the service of the Crown and not merely those in the service of the East African Governments and the High Commission. At present some locally engaged civilian employees of the Crown are excluded.

Section 5 is amended by *clause 5* so as to reduce from five to three days the period of incapacity qualifying a workman for compensation. This brings the Ordinance into conformity with the United Kingdom Workmen's Compensation Act, 1925, on which it is based. *Clause 5* further amends section 5 to provide that a workman should not be deprived of compensation under sub-section (3) of section 5 unless he falsely represented in writing that he was not suffering or had not previously suffered from that or a similar injury. Hitherto any such false representation, whether in writing or not, has sufficed to deprive a workman of compensation.

Clause 6 amends section 6 so as to increase (in proportion to the increase in earnings made by *clause 2*) the maximum compensation payable in fatal cases from £700 to £1,200, and also to provide that in cases where a period of temporary incapacity terminates in death compensation payable will be in addition to any compensation which may have been paid in respect of the temporary incapacity. At present sums paid as compensation in respect of temporary incapacity are deducted from compensation paid in respect of death and cases have occurred in which a workman has died after a lengthy period of temporary total incapacity, with the result that his dependants have received only a very small sum in compensation for his death. The reference to medical attendance is also deleted from section 6 by this clause, as the matter is adequately dealt with under Part III of the Ordinance.

Clauses 7 and 8 amend sections 7 and 8 so as to increase the upper (from £1,000 to £1,700) and lower (from £75 to £100) limits of compensation payable for permanent incapacity and to establish the same maximum compensation for both permanent partial and permanent total incapacity. In the past these provisions of the Ordinance have operated unfairly against a workman earning more than Sh 5,000 a year who suffered permanent partial incapacity since, in such a case, compensation was assessed on a maximum of Sh 20,000, and not on 48 months' earnings. The amendment corrects this anomaly.

Section 9 is amended by *clause 9*—

- (a) to increase the maximum amount of any periodical payment from Sh 320 to Sh 545 (as a consequence of the increase in earnings made by *clause 2*),
- (b) to remove the bar to the payment of compensation in respect of the first three days in the case of incapacity lasting for four weeks or less,
- (c) to make provision for cases where compensation for temporary incapacity takes the form of a lump sum instead of periodical payments, and
- (d) to allow employers to make deductions from periodical payments made during temporary incapacity, with a limit upon the deductions which can be so made.

The section has been reworded to cover cases where an officer, as distinct from the Court, approves an agreement as to compensation.

Clause 10 amends section 10 so as to provide for the calculation of compensation on the actual remuneration at the date of the accident. Hitherto, it has been calculated on the workman's earnings over the previous 12 months. This basis of calculation has been found in many cases to be difficult to work and in several cases the provisions have operated harshly where the workman's earnings have increased during the 12 months prior to the accident. *Clause 10* also includes a new provision dealing with workmen who, at the date of the accident, were either under the apparent age of 18 years or were employed under a contract of apprenticeship, improvership or learnership.

Clause 11 amends section 13 of the Ordinance and provides that, in the case of persons earning less than the prescribed amount, failure to make a claim within six months of the accident shall not bar proceedings for compensation. As this section now stands, dependants of a deceased are debarred from claiming if, e.g. they cannot be traced within six months. A time limit, however, of three years from the accident is imposed after which a claim will in no circumstances be enforceable.

Clause 12 adds a new sub-section to section 14 of the Ordinance to provide that section 216 of the Criminal Procedure Code shall not apply in respect of any offence against section 14, for which the maximum penalty is Sh 1,000. Section 216 provides that in respect of any offence the maximum penalty for which does not exceed Sh 1,000, no proceedings can be taken unless the offence is charged or a complaint is laid within 12 months of its commission. A number of cases have occurred in which an employer has failed to notify the Labour Department of an accident, and the employee, not being conversant with the provisions of section 13 of the Ordinance, has not claimed compensation within six months, in many cases it is more than 12 months before the case comes to the notice of the Labour Department. In such circumstances it has not been possible to prosecute the employer for his failure to report the accident, this clause removes this anomaly.

Clause 13 is intended to remedy the inconsistency in section 15 of the Ordinance which allows a workman to name the medical practitioner but which also assumes in sub-sections (2), (3) and (4) that the examination is carried out in all cases by the medical practitioner named by the employer. This clause provides that the medical practitioner be named by the employer, who has in any event to bear the expense of the medical examination, the workman is allowed to have his own medical practitioner present at any examination, if he so wishes.

Section 19 of the Ordinance permits an employer in certain circumstances to reduce periodical payments, but sets no limit to the reduction. By *clause 14* it is provided that where these payments together with the earnings of the workman exceed the earnings of the workman at the date of the accident, periodical payments may be diminished to the extent of such excess only.

Clause 15 amends section 26 of the Ordinance so as to allow the exemption of individual employers from any compulsory insurance provisions applied to a class of employers, and to provide for increased penalties for contravention of any order made by the Governor in Council of Ministers under this section.

Clause 16 amends sub-section (4) of section 27 of the Ordinance to make it clear that where an insurer's liability to an employer who is bankrupt, or to a limited company which is in liquidation, is less than that of the employer to the workman, the balance of the liability shall rank in priority over other debts as if the employer had not entered into a contract of insurance. This is considered to be a logical extension of the provisions of sub-section (3).

Clause 17 amends section 28 of the Ordinance to make it clear that "sea service" includes service on Lake Victoria.

As section 29 of the Ordinance stands at present the provisions of sub-section (1) might not apply in any case in which there is no conflict or inconsistency with other provisions of the Ordinance. This is not intended, and *clause 18* accordingly clarifies the position, and also makes provision for the determination of dependency in fatal

Clause 19 deletes the proviso to section 30 of the Ordinance which permits an employer in certain cases to contract out of liability, since this provision is open to considerable abuse and there is little justification for it

Under section 32 of the Ordinance an employer is liable for expenses of medical aid to an injured workman even though such injury is not compensable. *Clause 20* alters this position and provides that only in compensable cases is an employer required to provide medical aid at the rates provided by the Regulations. Further, as a corollary to the amendments to sections 2, 7 and 8 of the Ordinance, *clause 20* raises the limits of the employer's liability for medical fees and the cost of artificial appliances and apparatus, and renders an employer liable, up to a maximum of Sh 1,000, for expenses in transferring a workman to and from a place where medical aid is available. The latter provision is new.

Clause 21 makes a minor amendment to section 35 of the Ordinance in order to obtain consistency with the other provisions of the Ordinance.

Clause 22 amends section 37 of the Ordinance in order to maintain consistency with the corresponding provisions in Part II, section 10.

Clause 23 amends the penalty provisions contained in section 42 of the Ordinance.

In view of the increasing number of African women workers, *clause 24* includes a husband among the dependants specified in the First Schedule to the Ordinance.

It is considered advisable to add to the occupational diseases described in the Third Schedule to the Ordinance certain other diseases likely to be encountered in the industries developing in the Colony. This is effected by *clause 25*.

The net additional expenditure of public funds to meet the Government's total liabilities for its servants is likely to be small if this Bill is enacted.

Nairobi,
10th August 1955

E N GRIFFITH-JONES,
Attorney General

GOVERNMENT NOTICE No 1210

The Governor in Council has approved of the introduction of the following Bill into Legislative Council

A W PURVIS,
Clerk of the Legislative Council

**A BILL ENTITLED
AN ORDINANCE TO AMEND THE ASIATIC
WIDOWS' AND ORPHANS' PENSION
ORDINANCE**

ENACTED by the Governor of the Colony of Kenya,
with the advice and consent of the Legislative Council thereof,
as follows —

Short title and
commencement

1. This Ordinance may be cited as the Asiatic Widows' and Orphans' Pension (Amendment) Ordinance, 1955, and shall be deemed to have come into operation on the 3rd day of September, 1948

Repeal and
replacement of
section 12 of
Cap 74

2. There shall be substituted for section 12 of the Asiatic Widows' and Orphans' Pension Ordinance the following section—

Contributions by a re-engaged contributor 12 Anything in this Ordinance to the contrary notwithstanding, if a contributor, who is married or who is a widower with children of a pensionable age, retires on pension or otherwise leaves the service of this Government and is reappointed, permanently or temporarily, to a post in the service of this Government, he shall, as from the date of his reappointment and until he leaves the service, contribute at the rate of five per centum of his annual salary

MEMORANDUM OF OBJECTS AND REASONS

In accordance with section 12 of the Asiatic Widows' and Orphans' Pension Ordinance (Cap 74), a contributor to the Asiatic Widows' and Orphans' Pensions Fund who retires or otherwise leaves Government service and is re-engaged, either permanently or temporarily, and who has beneficiaries, is required to contribute to the Fund on his combined salary and pension from the date of his re-engagement to the date of the termination of his appointment

As the benefits payable under the Asiatic Widows' and Orphans' Pensions Fund are in the form of a fixed pension, it is considered inequitable that officers who are re-engaged should be required to contribute on salary as well as pension. Furthermore, under the provisions of the European Widows' and Orphans' Pension Ordinance and of the Asian Officers' Family Pensions Ordinance, an officer who is re-engaged is required to contribute either on his salary or on his pension, but not on his combined salary and pension

Clause 2 of this Bill, therefore, substitutes for section 12 of the Ordinance a new section, to take effect from 3rd September, 1948, the date with effect from which salaries of re-engaged pensioners were revised under the Holmes Revision. This new section will require an officer who is re-engaged to contribute on his salary only

The provisions of this Bill will, if enacted, result in the refund of contributions in certain cases. The refund will, of course, be made from the Fund, but since, under section 35 of the Ordinance, the Government has guaranteed the grant of all pensions, it is possible that eventually an additional charge on public funds will be created. It is not possible at this stage to estimate the amount of such additional charge, which, however, is not expected to be large in any event

Nairobi,
10th August, 1955

E N GRIFFITH-JONES,
Attorney General

GOVERNMENT NOTICE No 1211

The Governor in Council has approved of the introduction of the following Bill into Legislative Council

A W PURVIS,
Clerk of the Legislative Council

**A BILL ENTITLED
AN ORDINANCE TO AMEND THE AFRICAN
CHRISTIAN MARRIAGE AND DIVORCE
ORDINANCE**

ENACTED by the Governor of the Colony of Kenya,
with the advice and consent of the Legislative Council thereof,
as follows —

1. (1) This Ordinance may be cited as the African Christian Marriage and Divorce (Amendment) Ordinance, 1955, and shall be read and construed as one with the African Christian Marriage and Divorce Ordinance, hereinafter referred to as the principal Ordinance

Short title and commencement
Cap 99

(2) This Ordinance shall come into operation on such date as the Governor may, by notice in the Gazette appoint

2. There shall be inserted next after section 1 of the principal Ordinance the following new section—

Insertion of section 1A in the principal Ordinance

10 Interpretation 1A In this Ordinance, unless the context otherwise requires—

“licensed minister” means a minister who has been licensed to celebrate marriages under section 3B of this Ordinance,

15 “registrar” includes both a registrar of marriages appointed under section 4 of the Marriage Ordinance and a registrar appointed under section 8 of this Ordinance

Cap 144

3. There shall be inserted next after section 3 of the principal Ordinance the following new sections—

Insertion of sections 3A and 3B in the principal Ordinance

20 Places of worship not to require licensing for celebration of marriages 25 Cap 144 3A Notwithstanding any provision to the contrary in the Marriage Ordinance, a marriage may be celebrated under this Ordinance in any place of public worship, whether or not such place of worship is licensed under section 6 of the said Ordinance

30 Marriages only to be performed by ministers if licensed 3B (1) The Governor may license any minister to celebrate marriages under the provisions of this Ordinance and may at any time cancel such licence, and notice of the granting or cancellation of such licences shall be published in the Gazette

35 (2) Notwithstanding any provision to the contrary in the Marriage Ordinance, no Minister shall celebrate any marriage under the provisions of this Ordinance unless licensed by the Governor under sub-section (1) of this section

4. Section 6 of the principal Ordinance is amended—

Amendment of section 6 of the principal Ordinance

40 (a) by substituting for the words “before a registrar in the presence of two witnesses in his office” which appear therein, the words “before a licensed minister in a place of worship or before a registrar in his office, in either case in the presence of two witnesses”,

- (b) by inserting the words "licensed minister or" between the word "The" and the word "registrar" at the beginning of the second paragraph thereof, and
- (c) by numbering the said section as sub-section (1) and by adding the following new sub-section immediately thereafter—

(2) A licensed minister (whether or not he has been appointed a registrar under section 8 of this Ordinance) may in his absolute discretion refuse to witness a contract of marriage under this section 10

Amendment of
section 7 of the
principal
Ordinance

5. Section 7 of the principal Ordinance is amended by numbering the said section as sub-section (1) and by adding the following new sub-section immediately thereafter—

(2) The Registrar General shall cause to be printed and to be issued to each licensed minister and to each registrar books of marriage certificates in such form as may be prescribed 15

Amendment of
section 8 of the
principal
Ordinance

6. Section 8 of the principal Ordinance is amended—

(a) by substituting for the words "the Governor shall appoint" which appear therein, the words "the Governor may appoint", and 20

(b) by numbering the said section as sub-section (1) and by adding the following new sub-section immediately thereafter—

(2) The Registrar General may instruct a licensed minister to send any duplicate marriage certificate required by him to be transmitted to a registrar of marriages under the provisions of section 28 of the Marriage Ordinance to any registrar appointed under the provisions of sub-section (1) of this section, and if so instructed the licensed minister shall send the duplicate marriage certificate to such registrar instead of to the registrar of marriages appointed under section 4 of the said Ordinance for the district in which the marriage takes place, but in default of any such instruction the licensed minister shall send the duplicate marriage certificate to the registrar of marriages appointed under section 4 of the said Ordinance for the district in which the marriage takes place 40

MEMORANDUM OF OBJECTS AND REASONS

This Bill contains a number of amendments to the African Christian Marriage and Divorce Ordinance (Cap 99) which are considered desirable by the Christian Church

The main matters covered by the Bill are the substitution for the present requirement that places of worship must be licensed for the performance of marriages under this Ordinance, of a requirement that ministers shall be licensed before celebrating marriages under the Ordinance, the amendment of section 6 of the Ordinance to allow of "conversion marriages" under that section being contracted before licensed ministers as well as before registrars, and clarification of the position of registrars under this Ordinance

As regards the celebration of marriages in places of worship and before ministers, the position under the principal Ordinance is at present the same as under the Marriage Ordinance (Cap 144), i.e. the place of worship must be licensed, but the minister need not be licensed. The policy is, and has for long been, to license only permanent buildings. In the case of marriages under the principal Ordinance, this policy creates considerable inconvenience and hardship, by ruling out churches composed of temporary materials. On the other hand, the Churches wish to see some check kept on the performing of the ceremony and suggest this could well be achieved by requiring the minister to be licensed. This change will be confined to marriages under the principal Ordinance, and the position under the Marriage Ordinance will not be affected

The Churches would also prefer that "conversion marriages" under section 6 of the principal Ordinance could be celebrated before a minister in church, as well as before a registrar in his office, as the section now provides on the other hand, they would like ministers to have liberty of conscience and the right to refuse to conduct such ceremonies in some cases

There is at present some doubt as to whether, in view of the wording of section 8 of the principal Ordinance, registrars appointed under section 4 of the Marriage Ordinance are registrars for the purpose of the African Christian Marriage and Divorce Ordinance, in addition to ministers appointed registrars under section 8 of the latter Ordinance. The Bill clarifies this and expressly provides that administrative officers appointed registrars under section 4 of the former Ordinance and ministers appointed registrars under section 8 of the latter Ordinance are all registrars for the purpose of the latter. While this means an enlargement of the duties of administrative officers, it is not thought that it would in fact lead to very much additional work for them except when they might be asked to take "conversion ceremonies" under section 6 in cases where ministers declined to do so.

No additional expenditure of public moneys will be incurred if this Bill is enacted.

Nairobi,
10th August 1955

E N GRIFFITH-JONES,
Attorney General

GOVERNMENT NOTICE No 1212

The Governor in Council has approved of the introduction of the following Bill into Legislative Council

A W PURVIS,
Clerk of the Legislative Council

**A BILL ENTITLED
AN ORDINANCE TO EXTEND THE OPERATION OF
AND OTHERWISE TO AMEND THE SPECIAL TAX
(TEMPORARY PROVISIONS) ORDINANCE, 1953**

ENACTED by the Governor of the Colony of Kenya, with the advice and consent of the Legislative Council thereof, as follows —

Short title and
commencement

No 3 of 1953

Extension of
operation of
principal
Ordinance

Amendment
of section 4 of
the principal
Ordinance

1. This Ordinance may be cited as the Special Tax (Temporary Provisions) (Amendment) Ordinance, 1955, and shall be read and construed as one with the Special Tax (Temporary Provisions) Ordinance, 1953, hereinafter referred to as the principal Ordinance, and shall come into force on the 1st day of January, 1956

2. Without prejudice to the provisions of sub-section (3) of section 1 thereof, the principal Ordinance shall continue in force until the 31st day of December, 1956, and accordingly sub-section (2) of section 1 thereof shall have effect as if there were substituted for the date "31st day of December, 1955" appearing therein, the date "31st day of December 1956"

3. Section 4 of the principal Ordinance is amended by substituting for the amount "twenty-two shillings", appearing therein, the amount "twenty-five shillings"

MEMORANDUM OF OBJECTS AND REASONS

The Special Tax (Temporary Provisions) Ordinance, 1953, as amended (hereinafter referred to as "the principal Ordinance"), imposed a special tax on every adult male Kikuyu, Embu and Meru who, at any time in any year during which the Ordinance is in operation, is in a Scheduled Area

Section 1 (2) of the principal Ordinance, as amended by Special Tax (Temporary Provisions) (Amendment) Ordinance, 1954, provides that it shall remain in operation until the 31st day of December, 1955, and under section 4, similarly amended, the amount of the special tax is fixed at Sh 22

It is considered that the principal Ordinance should be continued in operation until the end of 1956 and that the rate of tax should be increased to Sh 25 for the year 1956, and this Bill is designed accordingly

Additional revenue of the order of £35,000 is expected to accrue if this Bill is enacted

Nairobi,
10th August 1955

E N GRIFFITH-JONES
Attorney General.